

Online Complaint Form



COMPLAINT ABOUT A CALIFORNIA JUDGE, COURT COMMISSIONER OR REFEREE

Confidential under California Constitution Article VI, Section 18, and Commission Rule 102

For instructions on filling out and submitting this form, please visit the commission's [Online Complaint Instructions webpage](#).

Date Submitted
8/2/2024 1:18 PM

Entry Number
8,174

* Indicates a required field

Your information

Complainant 1

Your name
Kostiantyn Mars

Your pronouns (e.g., he/him; she/her; they/them)

Your email
constantine.mars@gmail.com

Your telephone number
(408) 518-0088

Your address
211 Hope St 391751, Mountain View, California 94041

Judge and conduct

Judge 1

Name of judge
Stephen Lowney

Or Name of court commissioner or referee

Court Level
Superior Court

Court of Appeal District

County
Santa Clara

Type of court case

Family Law

Case name

Dissolution of Family Mars

Case number

22FL003144

Your relationship to the case

Litigant/Family/Friend

Date or dates conduct occurred

06/17/2024

Please specify what action or behavior of the judge, court commissioner or referee is the basis of your complaint. Provide relevant dates and the names of others present. (Attach additional pages if necessary.)*

Complaint

On 06/17/2024, the day after I just bailed out from jail after being arrested for bringing donuts and hot chocolate to my kidnapped son Max Mars,
DISQUALIFIED BRIBED CROOK LOWNEY,
DESPITE HIS ONGOING DISQUALIFICATION SINCE 02/20/2024,
DESPITE FOUR STATEMENTS OF DISQUALIFICATION SERVED HIM 02/20/2024, 03/11/2024,
03/12/2024, 06/14/2024,
AND DESPITE MY MULTIPLE REQUESTS TO RESCHEDULE ALL HEARINGS FROM 06/17/2024 DUE TO IMPERMISSIBLE CONFLICT OF INTEREST AND PERSONAL THREATS TO PUT ME IN JAIL FROM STEPHEN LOWNEY IN RETALIATION TO ME FOR SERVING HIM STATEMENT OF DISQUALIFICATION ON 02/20/2024 (AFTER THE VERY FIRST MONTH OF HIS ASSIGNMENT IN DEPARTMENT 79 - WHEN HE IS SUSPECTED OF RECEIVING BRIBE FROM NANCY ROBERTS, WHICH LED TO MASSIVE REPETITIVE FRAUD ON COURT 02/01/2024, 02/07/2024 AND ON ALL HEARINGS AFTER),
DESPITE MY RESPECTFUL REQUEST FOR HELP FROM PRESIDING JUDGE BETH MCGOWEN, CLERKS OFFICE AND ALL DEPARTMENTS OF FAMILY JUSTICE CENTER (WHICH WAS COMPLETELY IGNORED),

DESPITE ALL OF MY GOOD FAITH ATTEMPTS TO RESCHEDULE HEARINGS 06/17/2024 AND ALLOW ENOUGH TIME FOR PRESIDING JUDGE BETH MCGOWEN TO PROPERLY REMOVE DISQUALIFIED CROOK STEPHEN LOWNEY,

HE WAS ALLOWED ALLOWED TO SEVERELY RETALIATE TO ME - WHICH HE DID,

IN COLD BLOOD,
IN MY ABSENCE,
DESPITE MY NOTICE AND REQUEST TO RESCHEDULE ALL HEARINGS 06/17/2024,

STEPHEN LOWNEY RULED ON ALL MATTERS 06/17/2024, AND SEVERELY RETALIATED TO ME BY:

1) ORDERING BENCH WARRANT AGAINST ME (ARREST ORDER, EXACTLY AS HE THREATENED);

2) PERMANENT RESTRAINING ORDER AGAINST MY SON (DESPITE ALL EVIDENCE, WITNESS STATEMENTS, AND THE FACT THAT I ASKED TO RELEASE MY SON, AND GIVE HIM CHANCE TO BE PROTECTED FROM BEING BEATEN BY SCHIZOPHRENIC MOTHER... DESPITE ME BEGGING

TO RELEASE MY CHILD FROM VIOLENT ABUSER)

3) DENIED ALL MY REQUESTS, INCLUDING REQUEST TO NULLIFY ALL ORDERS OBTAINED BY REPETITIVE FRAUD ON COURT BY THREE DISQUALIFIED CROOKS "JUDICIAL OFFICERS" STEPHEN LOWNEY, ANDREA FLINT, JAMES TOWERY

THREE MONTHS BEFORE THIS MASSIVE RETALIATION, ON 03/11/2024 STEPHEN LOWNEY ORDERED VEXATIOUS LITIGANT PREFILING ORDER AGAINST ME - AND CURRENTLY ALL MY REQUESTS AND MOTIONS ARE REJECTED BY CLERKS OFFICE, AND WHEN I SEND THEM TO PRESIDING JUDGE BETH MCGOWEN - THEY SIMPLY DISAPPEAR, WITHOUT ANY TRACE...

JUDICIAL OFFICER WHO HAS CONFLICT OF INTEREST, OR WHOSE IMPARTIALITY IS QUESTIONED - MUST RECUSE THEMSELVES IN COMPLIANCE WITH CCP 170.3

LOWNEY REFUSED TO RECUSE, HE DEMONSTRATIVELY CONFIRMED IMPERMISSIBLE PERSONAL CONFLICT OF INTEREST - BY THREATS TO PUT ME IN JAIL AND SILENCE ME BY VEXATIOUS LITIGANT ORDER, TO FORCE ME TO ABANDON MY SON MAX MARS.

DISQUALIFIED JUDGE, WHO BY CCP 170.4 HAS NO JUDICIAL POWER TO RULE ON ANY NON-DEFAULT MATTER, JUST COMMITTED THE MOST SEVERE RETALIATION TO ME IN VIOLATION OF CCP 170.3 AND 170.4

ON 06/17/2024 STEPHEN LOWNEY SHAMELESSLY IMPLEMENTED ALL HIS THREATS - SEVERELY RETALIATING TO ME FOR MY CLEAR STATEMENT THAT DESPITE ANY THREATS OR COERCION I WILL NOT ABANDON MY SON, AND I WILL FIGHT FOR FREEDOM OF MY SON, AND HIS LAWFUL RIGHT TO LIVE IN THE UNITED STATES, WHICH I PROVIDED TO MY SON DESPITE ALL ATTEMPTS OF HIS MOTHER TO CANCEL HIS GREEN CARD AND ABDUCT HIM TO UKRAINE.

I ACCEPT SEVERE RETALIATION OF LOWNEY WITH BENCH WARRANT (ARREST ORDER), VEXATIOUS LITIGANT PREFILING ORDER, DENIAL TO NULLIFY ALL ORDERS OF THREE DISQUALIFIED CROOKS "JUDICIAL OFFICERS" LOWNEY, FLINT AND TOWERY -

I ACCEPT THIS AS LOWNEY'S CONFIRMATION OF WEAKNESS, AND THE FACT THAT HE FAILED FAIR LITIGATION.

IF MY LAWFUL REQUEST TO RECONSIDER CUSTODY ORDERS, AND ALLOW MY SON FREEDOM TO HAVE FAIR, EQUAL, HEALTHY CO-PARENTING, TURNED INTO SOME FUCKING DUEL AGAINST FUCKED CROOK JUDGE - WHILE PRESIDING JUDGE AND ALL FAMILY COURT WERE WATCHING AND HELPING LOWNEY TO RETALIATE TO ME ABUSING HIS JUDICIAL POWER AND JUDICIAL IMMUNITY, SO IT BE.

BUT I STILL BELIEVE THAT THE ROLE OF JUDICIAL OFFICER IS NOT TO RETALIATE TO SELF-REPRESENTED LITIGANT, AND CARING FATHER OF KIDNAPPED AND ABUSED CHILD,

I DO BELIEVE THAT THE ROLE OF JUDICIAL OFFICER IS TO SERVE FAIR AND IMPARTIAL JUDGMENT, AND ADHERE TO CANONS OF JUDICIAL ETHICS

I ALSO BELIEVE THAT JUDICIAL OFFICER, PER ETHICS, WHEN CONFLICT OF INTEREST APPEAR, MUST RECUSE THEMSELVES - AS IT IS REQUIRED BY CANONS OF JUDICIAL ETHICS AND CCP 170.1, 170.3

WHAT HAPPENED IN SANTA CLARA COUNTY SUPERIOR COURT IS ABSOLUTELY

IMPERMISSIBLE.

THIS IS THE PEAK OF VIOLATION OF HUMAN RIGHTS AND CANONS OF JUDICIAL ETHICS.

I DO BELIEVE THAT AFTER SUCH SCREAMING RETALIATION AND COMPLETE IGNORANCE OF LAW, COURT PROCEDURES AND JUDICIAL ETHICS, SUPPORTED BY PRESIDING JUDGE BETH MCGOWEN,

SANTA CLARA COUNTY SUPERIOR COURT OF CALIFORNIA HAS NO AUTHORITY AND NO JURISDICTION OVER THIS CASE 22FL003144.

I DO ISSUE QUO WARRANTO AND REQUEST CHANGE OF VENUE TO SAN MATEO COUNTY COURT.

Dear Commission on Judicial Performance and Chief Justice Patricia Guerrero,
I respectfully ask you for emergency help to :

1) OFFICIALLY DISQUALIFY AND NULLIFY ALL ORDERS OF THREE DISQUALIFIED BRIBED CROOKS "JUDICIAL OFFICERS" STEPHEN LOWNEY (2024) , ANDREA FLINT (2023) , JAMES TOWERY (2022)

PLEASE SEND ME OFFICIAL CONFIRMATION OF DISQUALIFICATION AND NULLIFICATION OF ALL ORDERS RETROACTIVELY BACK TO 09/13/2022 -

SEND CONFIRMATION TO EMAIL: CONSTANTINE.MARS@GMAIL.COM AND MAIL: 211 HOPE ST 391751, MOUNTAIN VIEW, CA 94041

2) VACATE AND NULLIFY ALL CURRENT DVRO ORDERS (INCLUDING 06/17/2024 AND 11/28/2023), ALL STIPULATIONS (INCLUDING 01/26/2023 AND 02/08/2023), AND ALL HARMFUL FINANCIAL FRAUD ORDERS (INCLUDING 02/01/2024, 11/13/2023, 07/31/2023), AND OTHER MASSIVE FRAUD ORDERS OBTAINED BY FRAUD ON COURT (INCLUDING 06/17/2024, 03/21/2024, 03/11/2024, 02/27/2024, 02/07/2024, 02/01/2024, 11/13/2024, 07/31/2024, 06/29/2024, 10/31/2022)

PLEASE SEND OFFICIAL CONFIRMATION OF NULLIFICATION TO MY EMAIL constantine.mars@gmail.com and MAIL: 211 HOPE ST 391751, MOUNTAIN VIEW, CA 94041

3) TRANSFER CASE 22FL003144 TO SAN MATEO COUNTY COURT (OR ANOTHER COUNTY WITH PROVEN LOWER LEVEL OF CORRUPTION COMPARING TO DEEPLY ROTTEN NIT NEST OF SANTA CLARA COUNTY)

TO ALLOW MATTER TO BE HEARD BY IMPARTIAL JUDICIAL OFFICER FROM ANOTHER CULTURAL ENVIRONMENT, NOT BIASED BY REPETITIVE DISQUALIFICATION OF BRIBED CROOKS WHICH HAPPENED IN SANTA CLARA COUNTY

4) GRANT PERMISSION FOR VIDEO AND AUDIO RECORDING ALL PROCEEDINGS ON THIS CASE 22FL003144, MEDIA COVERAGE OF ALL PROCEEDINGS, MANDATORY STATEMENT OF DECISION FOR ALL PROCEEDINGS, MANDATORY COURT REPORTER FOR ALL PROCEEDINGS - AND GRANT FEE WAIVER FOR COURT REPORTER FEES DUE TO MASSIVE FINANCIAL DAMAGES CAUSED BY SEVERE REPETITIVE FRAUD OF THREE DISQUALIFIED CRIMINALS IN SANTA CLARA COUNTY COURT.

5) ASSIST IN DISQUALIFICATION AND REMOVAL OF UNETHICAL CROOK "LAWYER" NANCY ROBERTS FROM THIS CASE 22FL003144

NANCY BRIBED AND LED TO SUBSEQUENT DISQUALIFICATION OF THREE DISQUALIFIED BRIBED CROOKS "JUDICIAL OFFICERS" LOWNEY, FLINT, TOWERY, AND LED TO SUCH A MASSIVE AMOUNT OF INTENTIONALLY HARMFUL ORDERS OBTAINED BY FRAUD ON COURT, INCLUDING UNLAWFUL ARREST ORDERS, UNLAWFUL RESTRAINING ORDERS FACILITATING

CHILD KIDNAPPING, UNLAWFUL "CUSTODY TRANSFER AND CHILD DETAINMENT" ORDERS, FINANCIAL FRAUD WITH FALSIFIED BANK STATEMENTS, THAT THIS CASE ULTIMATELY NEEDS COMPLETE "RESET" AND NULLIFICATION OF ALL PILED UP MESS OF FRAUD CREATED BY REPETITIVE FRAUD ON COURT OF JUDGES, BRIBED BY NANCY AND DISQUALIFIED BY ME.

6) PLEASE CONSIDER TO ORDER MANDATORY VIDEO AND AUDIO RECORDING OF ALL HEARINGS IN SANTA CLARA COUNTY COURT, FAMILY JUSTICE CENTER - AND ENFORCE REVIEW OF PROCEEDINGS BY INSPECTING SUPERVISING ENTITY, WITH IMMEDIATE TERMINATION OF JUDGES INVOLVED IN SEVERE REPETITIVE FRAUD ON COURT.

7) PLEASE SIMPLIFY PROCEDURE OF DISQUALIFICATION - AND TERMINATE JUDGES FROM COURT IMMEDIATELY FOR THE FIRST MOTION TO RECUSE. PLEASE ENSURE THAT INVESTIGATING SUPERVISING ENTITY, ASSIGNED BY JUDICIAL COUNCIL, WILL HAVE UNLIMITED AUTHORITY TO TERMINATE JUDGES WITHOUT EXTRA "HEARINGS" OR OTHER DELAYS - TO ENFORCE CLEANUP OF SANTA CLARA COUNTY COURT OF ORGANIZED CRIMINAL ELEMENTS, WHO ARE MAKING GOOD UNLAWFUL MONEY ON FRAUD ON COURT AND SEVERE ABUSE OF JUDICIAL RESOURCES.

8) PLEASE TERMINATE FROM COURT WITH DISHONORS DISQUALIFIED CROOKS STEPHEN LOWNEY AND ANDREA FLINT, AND THEIR "MAFIA BOSS" BETH MCGOWEN - AND BAN THOSE CRIMINALS FROM OCCUPYING ANY JUDICIAL OR POLITICAL JOBS INDEFINITELY

Please help to restore reputation of Santa Clara County Court by immediate cleanup from organized criminals, acting under color of law, and please help me to save my son from being beaten and abducted outside of the United States to Ukraine in times of war by mother who promised me to "bribe anybody who we may need" to "bury our son in Ukrainian soil, so you will never see him again".

Please see in Evidence PDF my Instagram, LinkedIn and photos of Max and whole family that I was trying to cherish whole and safe - before kidnapping with fraud DVRO in 2022.

Appreciate your prompt attention to this urgent matter.
Thank you

File Upload

Evidence for Complaint 2024-06-17 - Bench warrant, Permanent DVRO, Denied nullification of all orders of disqualified judges (compressed).pdf

2024-06-17 [Lowney] Massive fraud, bench warrant, permanent restraining order, denial to nullify all fraud - Minute Order - with highlights.pdf

2024-06-14 Disqualification against Lowney 3rd Amended.pdf

2024-03-12 Disqualification against Lowney 2nd Amended.pdf

2024-03-11 Disqualification against Lowney Amended (printed).pdf

2024-02-20 Disqualification against Lowney.pdf

2024-02-20 Cover Letter to Presiding Judge.pdf

Letter from Presiding Judge Beth McGowen 2024-04-08.pdf

Letter Assistant Executive Officer Lisa Herrick 2024-06-17.pdf

2024-06-06 - Request_ Reschedule all hearings on case 22FL003144 to prevent irreparable harm from retaliating disqualified bribed judge Stephen Lowney (printed).pdf